



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Brandon T. Gilchrist
Subject: PUDC-25-84 | Bison Business Park Expansion – Annexation
Date: June 9, 2024

Background:

The item for consideration is an *Annexation*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 6/9/2025
- Public Services Committee 6/16/2025
- Second reading 6/23/2025
- Public Services Committee 7/7/2025
- Third and final reading 7/14/2025

Related Items:

PUDC-25-84 | Bison Business Park Expansion – Annexation

Attachments:

1. Ordinance
2. Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, A PORTION OF LAND GENERALLY LOCATED EAST OF SOUTH GREELEY HIGHWAY AND NORTH OF CHALK BLUFF ROAD.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body for the City of Cheyenne hereby finds as follows:

- (a) That ARP and Hammond Hardware Company is the owner of certain real property generally located east of South Greeley Highway and north of Chalk Bluff Road, and has petitioned the Governing Body of the City of Cheyenne to annex their real property, as described herein, and to make it a part thereof:

A portion of the south one-half of Sections 27 and 28, Township 13 North, Range 66 West of the 6th Principal Meridian, County of Laramie, State of Wyoming.

- (b) That an accurate map of area to be annexed is attached to this ordinance as Exhibit A, said map prepared by Adam E. Deschler, a Professional Land Surveyor, licensed in the State of Wyoming, PLS Number 12045;
- (c) That the annexation of said area is for the protection of the health, safety, and welfare of the persons residing in the area and the City of Cheyenne;
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne;
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished;
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned A-2 Agricultural by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

PATRICK COLLINS, MAYOR

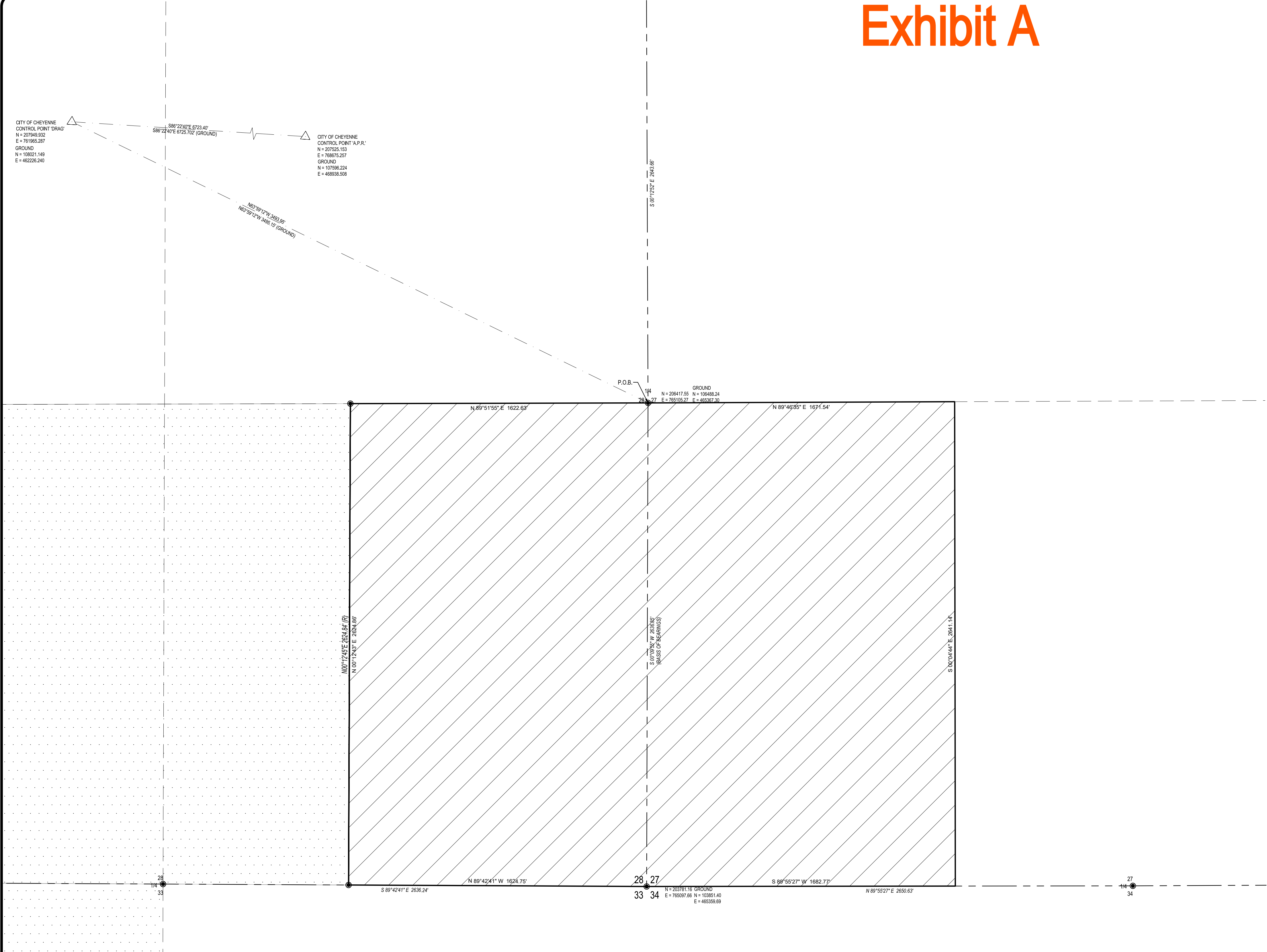
(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
Wyoming Tribune-Eagle

Exhibit A



- LEGEND**
- EXISTING CITY LIMITS
 - PROPOSED CITY LIMITS
 - FOUND ALUMINUM CAP
 - SET 2" ALUMINUM CAP, AVI PC PLS 12045
 - RECORD DATA FROM BISON BUSINESS PARK 3RD FILING
 - MEASURED DATA AVI SURVEY, COMPLETED NOVEMBER 2020

ANNEXATION NOTES:

TOTAL PERIMETER = 11,867.69'
LENGTH OF CITY LIMIT ABUTTING = 2624.86'
RATIO = 22.12%
TOTAL AREA = 199.67 ACRES

BASIS OF BEARINGS

GROUND COORDINATES SHOWN ARE BASED ON US STATE PLANE 1983, WYOMING STATE PLANE EAST FIPZONE 4901 WY E.
TO CONVERT TO STATE PLANE COORDINATES ADD 100,000 FT TO THE NORTHING AND 300,000 FT TO THE EASTING AND MULTIPLY BY A PROJECT SCALE FACTOR OF 0.999657644.
EXAMPLE POB
GROUND NORTHING = 106488.24
GROUND EASTING = 465367.30
STATE PLANE N = (106488.24+100000)*SF = 206417.55
STATE PLANE E = (465367.30+300000)*SF = 765105.27
ORIGINAL FIELD SURVEY BY: AVI PC MARCH 2025

CONSIDERING THE WEST LINE OF THE SOUTHWEST QUARTER OF SECTION 27 BEING MONUMENTED BY AN ALUMINUM CAP AT THE SOUTH SECTION CORNER AND THE WEST QUARTER CORNER WHOSE LINE BEARS S00°09'55"W A DISTANCE OF 2636.65 FEET AND ALL BEARINGS AND DISTANCES BEING RELATIVE THERETO.

LEGAL DESCRIPTION

THE FOLLOWING IS A DESCRIPTION FOR A PARCEL OF LAND LOCATED IN: A PORTION OF SOUTH ONE-HALF OF SECTIONS 27 AND 28, TOWNSHIP 13 NORTH, RANGE 66 WEST OF THE 6TH PRINCIPAL MERIDIAN BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT THE QUARTER CORNER COMMON TO SECTIONS 27 AND 28 THENCE ALONG THE EAST-WEST QUARTER LINE OF SAID SECTION 27 N89°46'35"E A DISTANCE OF 1671.54 FEET; THENCE S00°04'44"E A DISTANCE OF 2641.14 FEET TO A POINT ON THE SOUTH LINE OF THE SOUTHWEST QUARTER OF SAID SECTION 27; THENCE ALONG SAID SOUTH LINE S89°55'27"W A DISTANCE OF 1682.77 FEET TO THE SECTION CORNER COMMON TO SECTIONS 27, 28, 33 AND 34; THENCE ALONG THE SOUTH LINE OF THE SOUTHEAST QUARTER OF SAID SECTION 28 N89°42'41"W A DISTANCE OF 1624.75 FEET TO A POINT ON THE EAST PROPERTY LINE OF LOT 1, BLOCK 2 BISON BUSINESS PARK 3RD FILING; THENCE ALONG SAID EAST PROPERTY LINE N00°12'43"E A DISTANCE OF 2624.86 FEET TO A POINT ON THE EAST-WEST QUARTER LINE OF SAID SECTION 28; THENCE N89°51'55"E A DISTANCE OF 1622.63 FEET TO THE POINT OF BEGINNING.

SAID PARCEL OF LAND CONTAINS 199.67 ACRES MORE OR LESS AND SUBJECT TO EASEMENTS OF RECORD.

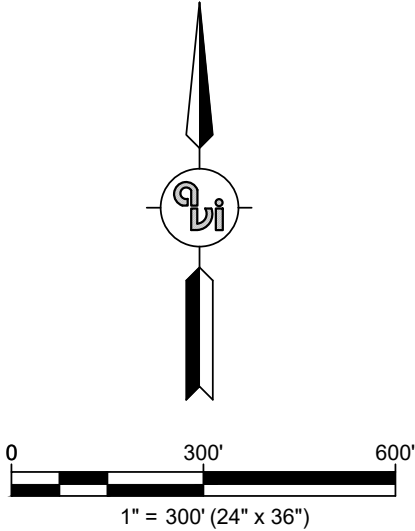
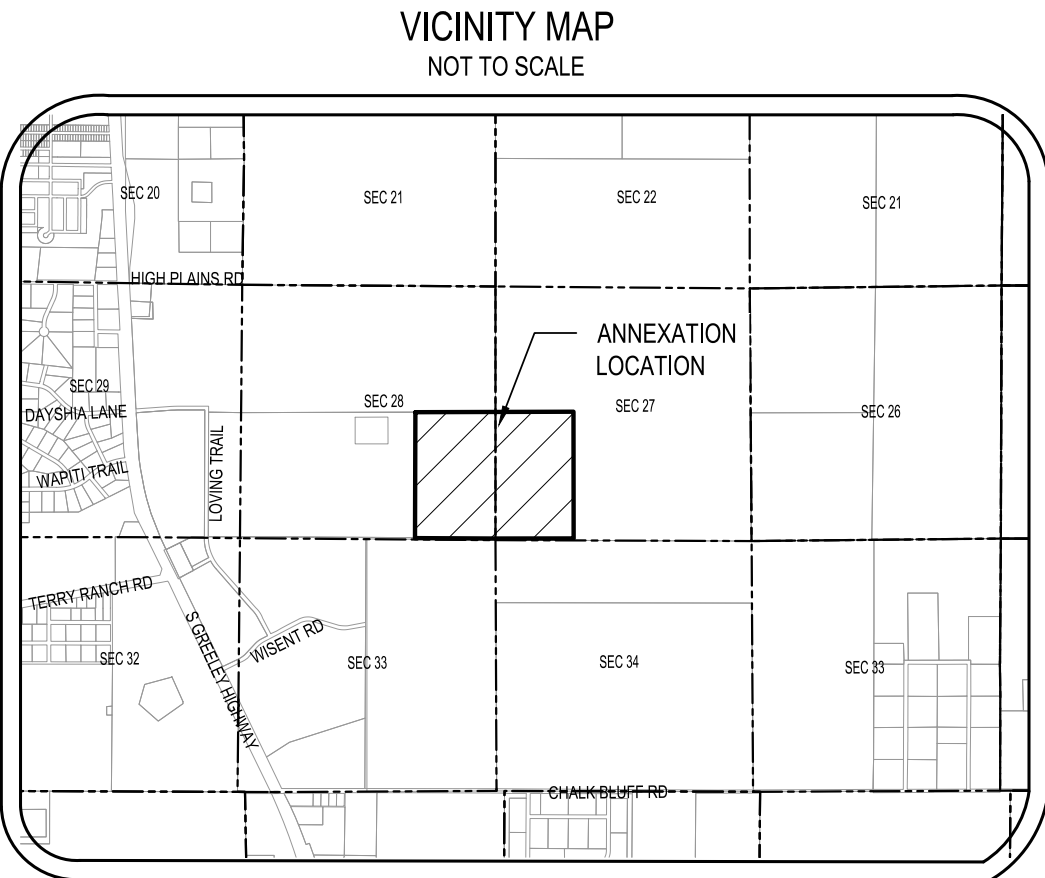
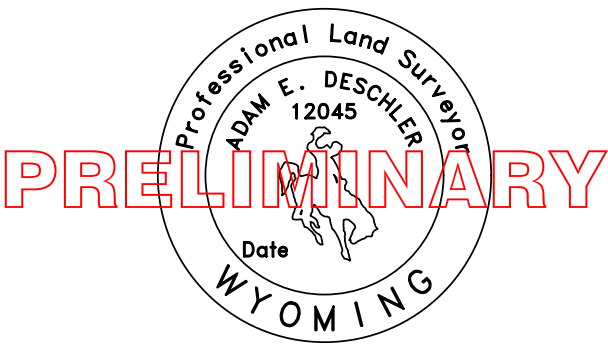
APPROVALS

APPROVED BY THE CITY COUNCIL OF THE CITY OF CHEYENNE, THIS ____ DAY OF _____, 2025.

MAYOR _____ CITY CLERK _____

CERTIFICATE OF SURVEYOR

I, ADAM E. DESCHLER, A PROFESSIONAL LAND SURVEYOR LICENSED IN THE STATE OF WYOMING DO HEREBY CERTIFY THAT THIS ANNEXATION MAP WAS PREPARED FROM THE RECORDS AND FIELD NOTES OF A SURVEY CONDUCTED BY ME OR UNDER MY DIRECT SUPERVISION AND THAT ALL DIMENSIONS AND OTHER DETAILS ARE CORRECT TO THE BEST OF MY KNOWLEDGE AND BELIEF.



FILING RECORD

ANNEXATION MAP FOR BISON BUSINESS PARK EXPANSION
BEING SITUATED IN A PORTION OF SECTIONS 27 AND 28, TOWNSHIP 13 NORTH, RANGE 66 WEST, OF THE 6TH P.M., COUNTY OF LARAMIE, STATE OF WYOMING
PREPARED APRIL 2025

NO.	REVISION	DATE

PREPARED FOR:
ARP AND HAMMOND HARDWARE CO

PROJECT:
BISON BUSINESS PARK EXPANSION

DRAWING TITLE:
ANNEXATION MAP



307.637.6017
1103 OLD TOWN LANE, SUITE 101
CHEYENNE, WY 82009
AVI@AVIPC.COM

DATE:	APRIL 2025
DRAWN BY:	CRJ
DESIGNED BY:	
CHECKED BY:	AED/BE
JOB NO.:	4981

DRAWING NO. **1** OF **1**



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CITY OF CHEYENNE GOVERNING BODY

June 9, 2025

STAFF REPORT

FILE: PUDC-25-84: Bison Business Park Expansion - Annexation

REQUEST: An annexation of 199.67 acres

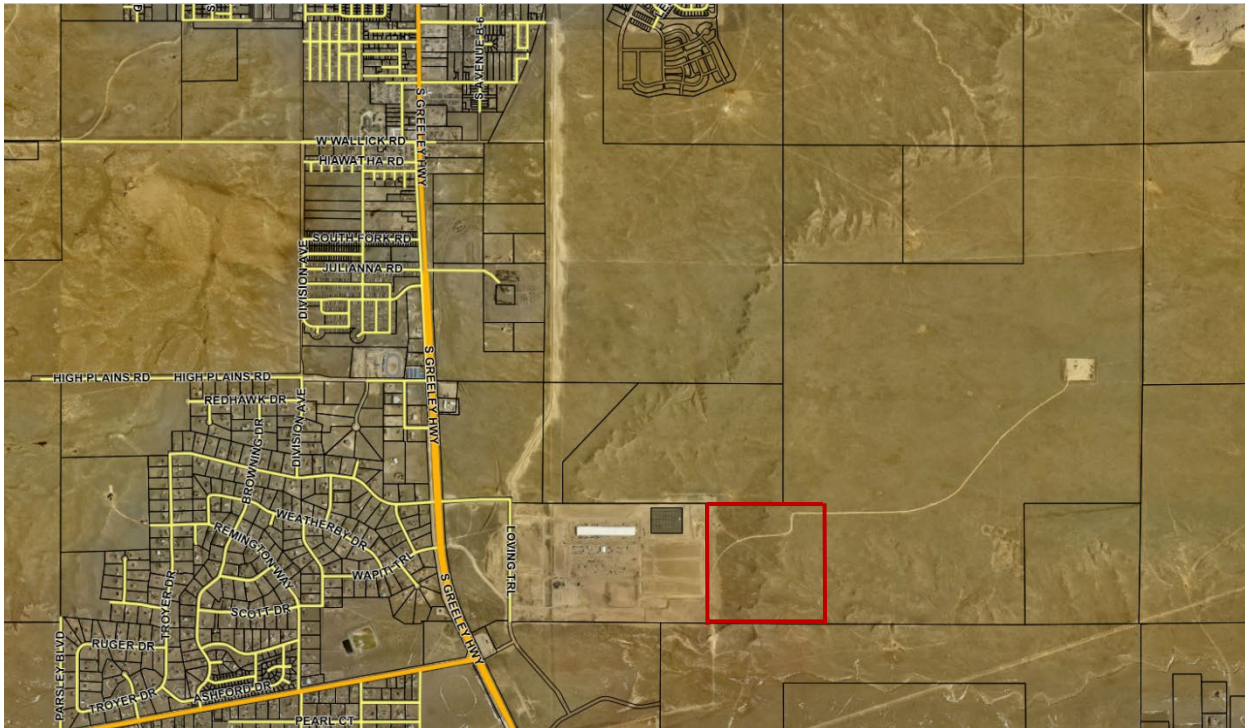
LOCATION: East of South Greeley Highway and North of Chalk Bluff Road.

APPLICANT: AVI PC

OWNERS: ARP and Hammond Hardware Company

PURPOSE: To extend Bison Business Park

PREPARED BY: Brandon T. Gilchrist, Planner I



APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.4.2 Annexations
- PlanCheyenne

BACKGROUND:

The applicant requests the annexation of 199.67 acres of land. The property is largely vacant agricultural land in the County. The land is adjacent to a data center in City limits to the west.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Agricultural/Rural	County A-2-Agricultural	Vacant/ Agriculture
North	Agricultural/Rural	County A-2-Agricultural	Vacant/ Agriculture
South	Agricultural/Rural	County A-2-Agricultural	Vacant/ Agriculture
East	Agricultural/Rural	County A-2-Agricultural	Vacant/ Agriculture
West	Industrial	HI-Heavy Industrial	Data Center

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

To accept the petition to annex and approve the annexation Ordinance, the Governing Body must make the following findings required in WS 15-1-402; a detailed analysis of which is below:

1) An annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town. [WS 15-1-402 (a) (i)]

The annexation of this property will increase the health, safety, and welfare of the future occupants. By being within City limits, the property will receive access to City water, sewer, sanitation, Fire, and Police services.

The application **complies** with this review criterion.

2) The urban development of the area sought to be annexed would constitute a natural, geographical, economic, and social part of the annexing city or town. [WS 15-1-402 (a) (ii)]

This property will constitute a natural, geographic, economic, and social part of the city. The property is a direct connection for the Bison Business Park.

The application **complies** with this review criterion.

- 3) **The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed. [WS 15-1-402 (a) (iii)]**

Due to the previously listed reasons, the area is a logical and feasible addition to the City. All City services normally available to residents will also be made available. Police and fire protection will be extended upon annexation. Utility infrastructure exists adjacent to the property on the west.

The application **complies** with this review criterion.

- 4) **The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. 15-1-407. [WS 15-1-402 (a) (iv)]**

The area proposed for annexation is about 35% contiguous and directly adjacent to Bison Business Park 3rd Filing, Lot 1, Block 2.

The application **complies** with this review criterion.

- 5) **If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to W.S. 15-1-410. [WS 15-1-402 (a) (v)]**

Utility franchises are in place to serve the annexed area.

The application **complies** with this review criterion.

- 6) **The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. 15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date and location of the public hearing required by W.S. 15-1-405(a). [WS 15-1-402 (a) (vi)]**

A certified mailing was made to the landowners and public utilities on May 8th, 2025. The public hearing for this annexation is scheduled for June 9th, 2025. Twenty (20) business days (on the City's calendar) prior to the announced public hearing was May 9th, 2025. The earliest confirmation of delivery was dated May 15th, 2024.

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- Plan Cheyenne

The Future Land Use Map of PlanCheyenne, as updated by Connect 2045, anticipates this area of the community developing as agricultural/rural. These areas are anticipated to remain for ranching with possible energy production facilities.

Although this area is designated Agriculture and outside the urban service boundary foreseen by the 2014 comprehensive plan, PlanCheyenne also encourages flexibility to respond to market demands,

recruiting employers, and creating sites for industrial development far from residential neighborhoods. The area proposed to be annexed is adjacent to an area designated industrial and would likely develop with an employment user in a business park format.

STAFF REVIEW:

Planning and Development: Utilities and services are on a nearby parcel, but the development of this property will require extending both. The area is outside the urban service boundary and in an area designated agricultural/rural by the future land use plan.

CONCLUSION:

Staff is satisfied that the application meets the review criteria and therefore recommends annexation approval.

The proposed annexation is a natural extension of the city. It is adjacent and contiguous (35%) to the current City limits, and services typically available to urban areas can be extended to this property.

STAFF RECOMMENDATION:

Staff recommends approval of the annexation of the property.

ATTACHMENTS:

1. Future Land Use Map
2. Submitted Application
3. Annexation Petition
4. Applicant-submitted annexation map